

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN
JUDICIAL DEPARTMENT

W.P. No.633 of 2026

Ghulam Murtaza

Versus

***Government of Punjab through Secretary, School Education
Department, Lahore & others***

J U D G M E N T

Date of hearing: 02.03.2026.
Petitioner by: Raja Naveed Azam, Advocate.
Respondents by: Malik Muhammad Bakhsh Khakhi, Assistant
Advocate General along with Ms. Anum
Tabassum, A.E.O. (Education) and Ms. Hina
Naz, A.E.O. (Education).

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through this constitutional petition, the petitioner seeks declaration that impugned order dated 27.11.2025 and consequent stoppage of his monthly salary under the Family Assistance Package on the ground of his re-marriage are illegal, without lawful authority and violative of Articles 4, 9, 10-A, 14 and 25 of the Constitution of the Islamic Republic of Pakistan, 1973.

2. Briefly stated, the wife of the petitioner, Mst. Maleeha Abbas, serving as EST in the Education Department, expired in service on 16.09.2018. Vide notification dated 29.09.2018, the legal heirs were sanctioned pensionary benefits in accordance with the relevant rules. The petitioner, being widower of the deceased employee, was appointed as OSD against a post created w.e.f. 16.09.2018 till the date of superannuation of the deceased employee, and continued to draw salary accordingly. The arrangement remained operative for several years. In 2025, upon a

complaint alleging re-marriage of the petitioner, his salary was stopped. Initially, no written order was communicated; however, pursuant to earlier directions of this Court, the competent authority proceeded in the matter and, after affording opportunity of hearing, passed order dated 27.11.2025. During such proceedings, the petitioner admittedly submitted an affidavit acknowledging that he had contracted a *Shar'i Nikah*. Relying upon Notification No. FD.SR-III-4-244/2023(B) dated 20.08.2025, which provides that family pension shall be admissible to the spouse “for life or till re-marriage, whichever is earlier,” the respondents declined continuation of benefits.

3. Learned counsel for the petitioner contends that stoppage of salary merely on the basis of marital status is unconstitutional and contrary to the law laid down by the august Supreme Court in The Chief Commissioner Regional Tax Office, Bahawalpur and others v. Shaheen Yousaf (2025 SCMR 1076) as well as by the learned Division Bench of this Court in Zoya Islam v. Government of Pakistan etc. [2025 PLC (C.S.) 422]. He argues that the petitioner had acquired a vested right to continue as OSD till the superannuation date of his deceased wife and that the abrupt discontinuation of salary offended principles of natural justice and legitimate expectation. Conversely, learned Law Officer defends the impugned order by submitting that the petitioner’s entitlement flows entirely from pensionary policy and the Finance Department notification dated 20.08.2025, which unequivocally limits entitlement till re-marriage; once remarriage was admitted, cessation of benefit was automatic and lawful.

4. Arguments heard. Record perused.

5. The controversy essentially narrows down to two questions: *firstly*, whether the petitioner possesses a vested and indefeasible right to continuation of OSD salary irrespective of re-marriage; and *secondly*, whether the impugned action suffers from constitutional or legal infirmity.

6. It is not disputed that the benefits extended to the petitioner originate from the Family Assistance Package read with the Punjab Civil Servants Pension Rules. Such benefits constitute welfare-oriented measures designed to provide financial relief to the dependents of a government servant who dies in service. However, it is equally well settled that benefits flowing from compassionate or family assistance schemes remain creatures of policy and statute, and their grant as well as continuation is necessarily subject to the conditions prescribed therein. Courts have consistently held that compassionate arrangements cannot be treated as an independent source of service rights but are contingent upon compliance with the eligibility criteria embodied in the governing policy.

7. The Finance Department Notification dated 20.08.2025 explicitly provides that family pension to a spouse shall remain admissible “for life or till re-marriage, whichever is earlier.” The expression “spouse” employed in the notification is gender-neutral and applies equally to widows and widowers. The condition of cessation upon re-marriage therefore operates uniformly and does not discriminate between similarly placed persons. In the present case, the petitioner candidly admitted before the competent authority that he had contracted a second marriage. Once this fact stood established, the statutory condition envisaged in the notification became operative, thereby disentitling him from continuation of the benefit.

8. The reliance placed upon Shaheen Yousaf's case (supra) is misconceived. In that case, the Hon'ble Supreme Court examined an Office Memorandum which singled out widows for disqualification upon re-marriage while imposing no such restriction upon widowers. The vice identified was gender-based discrimination offending Article 25 of the Constitution and the dignity clause under Article 14. The present case stands on a materially different footing. The impugned notification does not discriminate on the basis of gender; rather, it uniformly conditions

entitlement of any spouse upon continued dependency status. The *ratio decidendi* of the Supreme Court judgment, therefore, is distinguishable and does not render the present notification unconstitutional. Similarly, in Zoya Islam's case (supra), termination of a widow's contractual employment was set aside because it was founded upon an Office Memorandum already declared *ultra vires*, and the Court recognized the accrued right flowing from a valid appointment. Here, the petitioner was not appointed through an independent recruitment process against a substantive vacancy; his placement as OSD was ancillary and derivative of the pensionary regime consequent upon the death of his spouse. The continuation of such arrangement remained subject to the governing statutory framework. No indefeasible or immutable right insulated from subsequent lawful regulation has been demonstrated.

9. As regards the plea of legitimate expectation, it is well settled that no expectation can operate contrary to an express statutory condition. Administrative continuation of payment for some years cannot override a binding notification having statutory force. Pensionary and compassionate benefits, being welfare-oriented measures flowing from policy, do not crystallize into absolute or perpetual rights detached from the eligibility criteria attached thereto. It is a settled principle of law that no indefeasible or perpetual right can be claimed by a person when such claim stands in conflict with the governing law; a right which is purely derivative of a statutory scheme must necessarily subsist and cease with the conditions prescribed therein. Once the governing policy itself limits entitlement upon the occurrence of a specified event, the beneficiary cannot insist upon continuation of the benefit notwithstanding the cessation of eligibility. In the present case, the petitioner admittedly contracted a second marriage, thereby attracting the condition embodied in the Finance Department Notification dated 20.08.2025, which restricts entitlement till re-

marriage. Consequently, the continuation of benefit could not be claimed as a matter of vested right. Reliance is placed upon Constitution Petition No.127 of 2012 - (REGARDING PENSIONARY BENEFITS OF THE JUDGES OF SUPERIOR COURTS FROM THE DATE OF THEIR RESPECTIVE RETIREMENTS, IRRESPECTIVE OF THEIR LENGTH OF SERVICE AS SUCH JUDGES) - H.R.C. No.40927-S of 2012 - (APPLICATION BY ABDUL REHMAN FAROOQ PIRZADA) - Civil Miscellaneous Appeal No.176/2012 in Constituion Petition No.Nil of 2012 - (BEGUM NUSRAT ALI GONDA V. FEDERATION OF PAKISTAN and others) (PLD 2013 Supreme Court 829). The plea of violation of Article 10-A is equally untenable. The record reflects that pursuant to earlier directions of this Court, the petitioner was afforded an opportunity of hearing and a reasoned order dated 27.11.2025 was passed. The initial stoppage having thus been followed by due process and a speaking order, no prejudice of constitutional magnitude has been demonstrated.

10. Constitutional jurisdiction under Article 199 of the Constitution is ordinarily invoked where an action of a public authority is shown to be without lawful authority or of no legal effect. In the present case, the respondents have acted in pursuance of a duly issued notification regulating pensionary entitlement under the applicable policy framework. The petitioner, having admittedly contracted a second marriage, no longer falls within the ambit of continued eligibility under the prevailing rules. Once the statutory condition governing continuation of benefit stood attracted, the respondents were legally justified in discontinuing the same. It is well settled that where a claimant does not fulfill the conditions prescribed by the governing law or policy for the grant or continuation of a benefit, the matter does not give rise to any enforceable right capable of being protected in constitutional jurisdiction, nor does it constitute a case of violation or

contravention of statutory service rules warranting interference by this Court in the exercise of writ jurisdiction. In these circumstances, the impugned action cannot be characterized as arbitrary or without lawful authority. No *mala fide*, jurisdictional defect, or constitutional violation has been demonstrated so as to justify interference by this Court. Reference is made to Mrs. Naveeda Nisa v. Province of the Punjab and others [2023 PLC (C.S.) 150].

11. For the foregoing reasons, this petition, being devoid of merit, is **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.